

REFERENCE TITLE: difference in pricing; prohibition; penalty

State of Arizona
House of Representatives
Fifty-seventh Legislature
Second Regular Session
2026

HB 2489

Introduced by
Representative De Los Santos

AN ACT

AMENDING TITLE 44, CHAPTER 9, ARIZONA REVISED STATUTES, BY ADDING ARTICLE 27; RELATING TO COMMERCE.

(TEXT OF BILL BEGINS ON NEXT PAGE)

1 Be it enacted by the Legislature of the State of Arizona:

2 Section 1. Title 44, chapter 9, Arizona Revised Statutes, is
3 amended by adding article 27, to read:

4 ARTICLE 27. PRICE REGULATIONS

5 44-1383. Definitions

6 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

7 1. "PERSONAL DATA":

8 (a) MEANS ANY INFORMATION, INCLUDING A UNIQUE IDENTIFIER, THAT IS
9 LINKED OR REASONABLY LINKABLE ALONE OR IN COMBINATION WITH OTHER
10 INFORMATION TO AN IDENTIFIED OR IDENTIFIABLE INDIVIDUAL OR A DEVICE THAT
11 IDENTIFIES OR IS LINKED OR REASONABLY LINKABLE TO AN INDIVIDUAL.

12 (b) DOES NOT INCLUDE DEIDENTIFIED DATA OR PUBLICLY AVAILABLE
13 INFORMATION.

14 2. "PERSONAL INFORMATION" HAS THE SAME MEANING PRESCRIBED IN
15 SECTION 18-551.

16 3. "SURVEILLANCE PRICING":

17 (a) MEANS OFFERING OR SETTING A CUSTOMIZED PRICE FOR A GOOD OR
18 SERVICE FOR A SPECIFIC CONSUMER OR GROUP OF CONSUMERS THAT IS BASED IN
19 WHOLE OR IN PART ON PERSONAL INFORMATION.

20 (b) INCLUDES THE USE OF TECHNOLOGICAL METHODS THAT ARE CAPABLE OF
21 GATHERING PERSONAL INFORMATION ABOUT A CONSUMER'S BEHAVIOR,
22 CHARACTERISTICS, LOCATION OR OTHER PERSONAL ATTRIBUTES, INCLUDING THE USE
23 OF ANY OF THE FOLLOWING:

24 (i) SENSORS.

25 (ii) CAMERAS.

26 (iii) DEVICE TRACKING.

27 (iv) BIOMETRIC MONITORING.

28 (v) ANY OTHER FORM OF OBSERVATION FOR DATA COLLECTION.

29 44-1383.01. Surveillance pricing; prohibitions;
30 applicability; civil penalty; investigation;
31 definitions

32 A. A PERSON MAY NOT ENGAGE IS SURVEILLANCE PRICING.

33 B. A PERSON IS NOT ENGAGED IN SURVEILLANCE PRICING IF ANY OF THE
34 FOLLOWING APPLIES:

35 1. THE DIFFERENCE IN PRICING IS BASED SOLELY ON THE DIFFERENCES IN
36 COSTS THAT ARE ASSOCIATED WITH PROVIDING A GOOD OR SERVICE TO DIFFERENT
37 CONSUMERS.

38 2. THE DIFFERENCE IN PRICING EITHER:

39 (a) IS BASED ON PUBLICLY DISCLOSED ELIGIBILITY CRITERIA THAT ANY
40 CONSUMER COULD POTENTIALLY SATISFY, INCLUDING:

41 (i) SIGNING UP FOR A MAILING LIST.

42 (ii) REGISTERING FOR PROMOTIONAL COMMUNICATIONS.

43 (iii) PARTICIPATING IN A PROMOTIONAL EVENT.

1 (b) INCLUDES TERMS AND CRITERIA THAT EXPLAIN WHY THE CONSUMER
2 RECEIVED A DIFFERENCE IN PRICING AND THAT ARE CLEARLY AND CONSPICUOUSLY
3 DISCLOSED IN UNDERSTANDABLE TERMS AND CONVEYED IN SUCH A MANNER THAT AN
4 ORDINARY CONSUMER WOULD NOTICE AND UNDERSTAND.

5 3. THE DIFFERENCE IN PRICING IS OFFERED OR PROVIDED TO A COMMONLY
6 UNDERSTOOD SOCIAL GROUPING SUCH AS TEACHERS, VETERANS, SENIOR CITIZENS OR
7 STUDENTS AND BOTH OF THE FOLLOWING APPLY:

8 (a) THE TERMS AND CRITERIA FOR RECEIVING THE DIFFERENCE IN PRICING
9 ARE PUBLICLY AVAILABLE AND CONVEYED CLEARLY AND CONSPICUOUSLY AND ARE
10 DISCLOSED IN CLEAR AND PROMINENT TERMS IN SUCH A MANNER THAT AN ORDINARY
11 CONSUMER WOULD NOTICE AND UNDERSTAND.

12 (b) ANY CONSUMER MAY OBTAIN THE DIFFERENCE IN PRICING IF THE
13 CONSUMER CAN DEMONSTRATE PARTICIPATION IN A COMMONLY UNDERSTOOD SOCIAL
14 GROUP.

15 4. A DISCOUNTED PRICE IS OFFERED AS PART OF A LOYALTY PROGRAM,
16 MEMBERSHIP PROGRAM OR REWARDS PROGRAM THAT:

17 (a) IS AVAILABLE TO ANY CONSUMER IN THE LOYALTY PROGRAM, MEMBERSHIP
18 PROGRAM OR REWARDS PROGRAM WHO SATISFIES THE TERMS, ELIGIBILITY CRITERIA
19 OR CONDITIONS AND PRICES ARE NOT INDIVIDUALIZED FOR CONSUMERS AS PART OF
20 THE LOYALTY PROGRAM, MEMBERSHIP PROGRAM OR REWARDS PROGRAM.

21 (b) INCLUDES CURRENT DISCOUNTS, PROMOTIONS, REWARDS OR ANY OTHER
22 BENEFITS THAT ARE PROVIDED TO LOYALTY PROGRAM MEMBERS AND ARE DISCLOSED
23 CLEARLY AND CONSPICUOUSLY ON EQUAL TERMS IN SUCH A MANNER THAT AN ORDINARY
24 CONSUMER WOULD NOTICE AND UNDERSTAND.

25 (c) ALLOWS A CONSUMER TO ACCRUE AND EXCHANGE POINTS, CREDITS OR ANY
26 SIMILAR NONMONETARY SYSTEM OF VALUE FOR A PRODUCT OR SERVICE AND DOES NOT
27 CHARGE A DIFFERENT PRICE FOR THE POINTS, CREDITS OR SIMILAR NONMONETARY
28 SYSTEM OF VALUE TO DIFFERENT CONSUMERS FOR THE SAME OR A SUBSTANTIALLY
29 SIMILAR PRODUCT OR SERVICE.

30 5. THE DIFFERENCE IN PRICING IS ALLOWED PURSUANT TO TITLE 20.

31 C. THIS CHAPTER DOES NOT APPLY TO CREDIT PRODUCTS AS PRESCRIBED IN
32 15 UNITED STATES CODE SECTION 1981 (P.L. 91-508; 84 STAT. 1114).

33 D. IN ADDITION TO ANY OTHER REMEDY AT LAW, A PERSON THAT VIOLATES
34 THIS SECTION IS SUBJECT TO CIVIL PENALTY OF NOT MORE THAN \$3,500 FOR EACH
35 VIOLATION.

36 E. THE ATTORNEY GENERAL MAY INVESTIGATE ANY VIOLATION OF THIS
37 SECTION AND TAKE ACTION PURSUANT TO CHAPTER 10, ARTICLE 7 OF THIS TITLE.

38 F. NOTWITHSTANDING ANY OTHER LAW AND PURSUANT TO THE FEDERAL
39 ARBITRATION ACT AS PRESCRIBED IN TITLE 9, UNITED STATES CODE SECTIONS 1
40 THROUGH 16, A PREDISPUTE ARBITRATION AGREEMENT OR PREDISPUTE JOINT ACTION
41 WAIVER BETWEEN A PERSON THAT IS IN VIOLATION OF THIS SECTION AND ANOTHER
42 PERSON IS INVALID AND UNENFORCEABLE FOR THE PURPOSE OF A PERSON BRINGING A
43 CIVIL ACTION AGAINST ANOTHER PERSON PURSUANT TO THIS SECTION.

1 G. FOR THE PURPOSES OF THIS SUBSECTION:

2 1. "PREDISPUTE ARBITRATION AGREEMENT" MEANS ANY AGREEMENT TO
3 ARBITRATE A DISPUTE THAT HAS NOT ARISEN AT THE TIME OF MAKING THE
4 AGREEMENT.

5 2. "PREDISPUTE JOINT ACTION WAIVER" MEANS AN AGREEMENT, INCLUDING
6 AS PART OF A PREDISPUTE ARBITRATION AGREEMENT, THAT WOULD RESTRICT OR
7 WAIVE THE RIGHT OF ONE OF THE PARTIES TO THE AGREEMENT TO PARTICIPATE IN A
8 JOINT, CLASS OR COLLECTIVE ACTION IN A JUDICIAL, ARBITRAL, ADMINISTRATIVE
9 OR OTHER FORUM CONCERNING A DISPUTE THAT HAS NOT ARISEN AT THE TIME OF
10 MAKING THE AGREEMENT.